

HEADNOTE

“1. The original claim language of a European patent may be used as an aid to interpretation in connection with amendments to the claim language made during the grant proceedings.

2. As the unsuccessful party, the applicant in an unsuccessful application for provisional measures must generally also bear the costs incurred by the opposing party in filing a protective letter.”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP 3 883 277

Method for communicating spatially
located information to a mobile terminal

KEYWORDS

Preliminary relief application

Protective document costs

Interpretation

Earlier claim version as interpretive aid

Article 69 Legal costs

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a method for communicating spatially located information to a mobile terminal. According to the headnotes of the decision, courts may refer to the original claim language of a European patent when interpreting amendments that were made to the claims during the grant process. An unsuccessful applicant seeking provisional measures must typically pay the costs that the opposing party incurred in filing a protective letter.